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California law seeks to counter antisemitism in schools; critics say it has free speech implications

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Tears welling in her eyes, Assemblymember Rebecca Bauer-Kahan paused mid-sentence to calm herself on the Assembly floor.

Almost a century ago, the Nazis forced her grandmother to flee Austria, leaving behind her great-great-grandmother who died in the Holocaust, the Jewish Democrat from San Ramon told her fellow lawmakers. Last year, she said, her daughter told her that the bathrooms at her school had been vandalized with swastikas.

"My children deserve to show up at school and not have to face hate crimes in their building, to face the symbols that represented the end of their relatives," she said.

Stories like hers, as well as Hamas' attack on Israel on Oct. 7, 2023, prompted California's Jewish lawmakers to make countering antisemitism in schools their top priority this year. They sought to create a list of words and ideas that could not be mentioned in classrooms, including heavily disputed claims about Israel. The effort sparked the biggest, most emotional legislative fight of the year: Should the government regulate what can be taught in schools? If so, how far should it go?

At issue was Assembly Bill 715, which Gov. Gavin Newsom signed into law this month after it went through multiple major, sometimes last-minute rewrites during months of political tussling.

Champions have argued the law will protect Jewish students from rising bullying and discrimination, sometimes from teachers. While the state does not collect data on antisemitism in schools, reports of anti-Jewish bias statewide have doubled between 2021 and 2024, according to the California Department of Justice. Last year, more than 15% of all hate crime events in California were anti-Jewish, even though Jewish people make up about 3% of the state population.

"We cannot hide from the profoundly unfortunate truth that Jewish kids are being isolated, made to feel unwelcome, and verbally and physically attacked. And far too often, our schools are failing to protect them," Assemblymember Rick Zbur, a Los Angeles Democrat and co-author of the bill, said during a May hearing, when

By July, it had undergone a major overhaul, including determining that any instruction that "directly or indirectly deny Israel's right to exist," equating Israelis with Nazis, or disrespecting "the historical, cultural, or religious significance of Israel to the Jewish people" would count as creating an "antisemitic learning environment." It reinvigorated debates over whether criticism of Israel's founding, or even the belief that Jewish people should have an independent country in their ancient homeland, counts as antisemitic — something Jewish thinkers do not agree on.

Mainstream Jewish groups maintain that anti-Zionism, a broad term that generally opposes the idea of a standalone state with a Jewish-majority population, is antisemitic. Many Jewish academics, however, don't think it is antisemitic on its own, but they agree that blaming individual Jews for the actions taken by the Israeli government is antisemitic.

That July version of the bill drew heavy opposition from a vast coalition of education groups, from teachers unions to school boards, civil rights advocates and Muslim community organizations, who feared censorship of pro-Palestinian voices and infringement upon academic freedom. They would remain opposed through its many iterations, and many of them urged Newsom to veto it.

Their concerns lingered even as the bill was ultimately watered down in the final days of this year's legislative session to address bias more broadly: The final version no longer mentions the Israel-Hamas war and bars using professional development materials that violate the state's anti-discrimination laws. It also requires "factually accurate" instruction that is free of "advocacy, personal opinion, bias, or partisanship" — a controversial element the bill's authors said they ran out of time to tackle and promised to "clean up" next year.

"In its current form, this bill only reinforces broader national trends of silencing constitutionally protected speech, erasing historically relevant curriculum, and persecuting anyone who expresses even the slightest opposition to the federal administration," said Assemblymember Robert Garcia, a freshman Democratic lawmaker from Rancho Cucamonga and former teacher and school board member, who ultimately abstained from voting on the measure.

The squabble over the bill was messy, marked by hundreds of attendees, hourslong hearings, and accusations of bad faith from both sides. Bauer-Kahan called a teachers union advocate who opposed the bill antisemitic. After the bill passed out of the Legislature, a handful of pro-Palestinian activists protested from the Assembly gallery for more than an hour, yelling: "You will all have blood on your hands!"

The tension highlights the discomfort for California Democrats, who, despite having traditionally defended Israel, have had to reckon with a base growing increasingly critical of Israel. They faced a tough choice: Support the bill and risk upsetting some of the most powerful labor allies as well as their pro-Palestinian constituents, or oppose the bill and risk being labeled as antisemitic or unwilling to combat antisemitism. Amid the pressure, some Democratic lawmakers voted for the bill even as they warned it could be used to censor free speech. Others abstained instead of taking a side.

"I'm actually surprised that California state legislators would want to even touch it, because it's just so radioactive right now," said Kim Nalder, a political science professor at Sacramento State University. "It just feels like at this political moment, we want to lower the temperature, not shine a spotlight on ways in which we might target each other."

The issue was such a hot potato that many lawmakers avoided tackling it early in the legislative process, when policy differences are often ironed out, said Sen. Sasha Renée Pérez, a freshman progressive Democrat from Pasadena who chairs the Senate Education Committee. When the bill arrived in her committee in June, it still had no substantive language. Some lawmakers told her to not touch it either, while others left it up to her to "take care of it," she said.

"The ball got thrown to me," she told CalMatters. "And people knew that they were doing that."

'People would end up being very angry on both sides'

California's Jewish lawmakers introduced the bill in response to intensifying clashes in schools and college campuses nationwide over the Israeli-Hamas conflict in Gaza. For some Democrats, the timing couldn't have been worse.

The war has forced a tidal shift within the Democratic base, as voters' support for Israel's military campaign tanked over the past two years. That has forced some Democrats, even moderates who have historically backed Israel, to condemn the country and pull away from pro-Israel donors. Young Democrats are also more critical of Israel than their older peers, so any vote that could be perceived as silencing pro-Palestinian voices is risky.

"A very strong part of Democratic and leftist values that we are seeing expressed now is anti-genocide or anti-war," Nalder said. "(For) my students who are politically active, this is one of the chief issues that they care about."

The bill also came as President Donald Trump ordered immigration agents to arrest student activists critical of the Israeli government and withheld billions of dollars in funding from universities for their alleged failure to protect Jewish students. At least half a dozen other state Legislatures sought to fight antisemitism in schools this year, with

some adopting a highly disputed definition of antisemitism in state education codes. Enraged, some opponents accused California Democrats of taking a page out of Trump's playbook.

But the Democratic lawmakers had to balance all that with the risk of upsetting the Jewish community, a key voting bloc. A no vote could be construed as antisemitic, making the lawmaker vulnerable to challenges in the next election, Nalder said.

The bill was the sole priority of the 18-member California Legislative Jewish Caucus, which is composed entirely of Democrats and led by Assemblymember Jesse Gabriel of Encino and Sen. Scott Wiener of San Francisco, who chair the budget committees in their respective chambers.

Neither would speak with CalMatters about what happened with the bill. Gabriel's office did not respond to several CalMatters emails seeking an interview, whereas Wiener declined to comment, pointing CalMatters to the bill authors instead.

David Bocarsly, executive director of the Jewish Public Affairs Committee, which sponsored the bill, said the caucus' backing was crucial.

"The Jewish caucus was able to leverage their influence and respect with their colleagues and effectively represent the Jewish community's needs," he said.

Pérez acknowledged the political challenge, telling CalMatters she would have preferred to hold the bill until next year, but said legislative leaders had promised to deliver a bill the governor could sign this year. She said some colleagues told her it was "an impossible situation" to navigate.

"They felt like there was no winning," she said. "Regardless of what they would try to do to make amendments to it ... people would end up being very angry on both sides."

A debate over academic freedom

The clash over AB 715 is the latest episode of yearslong strife over how to teach about marginalized communities in California's K-12 schools and who should be included.

In past years, the fight primarily focused on ethnic studies — a mandatory high school course on the history and culture of groups such as Latinos, Asian Americans, African Americans and Native Americans. The state adopted a model curriculum in 2021, after years of fine-tuning amid disputes over which ethnic minority groups to teach about and criticism from Jewish advocates, who accused past versions of being antisemitic.

Jewish lawmakers championed a bill earlier this year that aimed to tackle antisemitism by restricting the ethnic studies curriculum, but the effort was stopped early in its tracks, and legislators turned to AB 715 instead.

"This is a bill about protecting Jewish students, and it shouldn't have been controversial," said Bocarsly, of JPAC. "If we don't teach empathy and understand it, we're going to build a generation of intolerance, and that's what we're trying to correct for."

He said AB 715 was "the hardest political fight in JPAC's history" and that the initial definition of an antisemitic learning environment was only meant to offer teachers guidance.

But opponents had two major concerns: that the bill's initial definition of antisemitic learning environment risked silencing discord about Israel, and that even in its final watered-down version it could chill free speech and open teachers up to lawsuits for teaching about anything controversial.

"Jews are most safe when democracy flourishes, when pluralism flourishes, not when rights are taken away," said David Goldberg, president of the California Teachers Association and a Jewish father to three children who attend

public schools.

What's safe for Jews was itself a matter of disagreement among the bill's backers and dissenters. Bocarsly said CTA leadership's opposition to every version of the bill shows that they "have little interest in supporting a bill that would protect Jewish students."

Goldberg, in an interview, called that accusation "a lot of chutzpah, frankly."

The fact the bill even tried to prescribe what an antisemitic environment looked like in classrooms was concerning to Kenneth Stern, a scholar on hate. More than 20 years ago, he was the lead author of the highly controversial definition of antisemitism that's been adopted by some states this year. It all but labels anti-Zionism as a form of antisemitism. Now, nearly 50 countries, including the U.S., have embraced the definition.

Though Stern wrote the definition, he opposes using it to restrict speech in schools, arguing that it could threaten academic freedom and fuel censorship by chilling discussion about controversial topics. Stern said despite all the revisions made during the process, the final version will likely make antisemitism worse.

The law creates an antisemitism prevention coordinator to advise education and legislative leaders and says the person in that role should use federal guidelines published under former President Joe Biden as "a basis" for decision-making. The controversial definition of antisemitism Stern wrote is labeled as the most prominent definition of antisemitism in those guidelines, though it mentions others.

"I understand why people care about (preventing antisemitism in schools)," he said. "They want the Legislature to do something. I think the legislators are sincere that they want to do something. This is the wrong thing."

Educators like Goldberg worry the bill could allow bad-faith critics to also dispute a wide array of controversial topics taught in schools. Will it become the basis for critics of the transgender community to pressure teachers to say there are only two genders, he wondered. Gabriel Kahn, a Jewish teacher in Oakland who said he's being investigated by his school district after challenging the content of an antisemitic training last year, said he fears prosecution for voicing the need to distinguish between antisemitism and criticism of Israel.

"What I'm most afraid of is that in the Democratic state of California, we can pass a censorship bill that protects a foreign nation from criticism implicitly," he said. "What does that say about the future of academic freedom in our country?"

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